



The impact of Neurological conditions on IP claims

A presentation by Jo Throp BSc (hons) OT, Clinical Director, Krysalis, and Mark Howard, Developing markets consultant, Krysalis

11th October 11:00 to 12:00

Thank you
for joining

**Please turn off your camera
and mute your microphone**



Click [HERE](#) for a video of the livestream



Reflecting on the needs of the working age neurological population living with mild to moderate needs

Jo Throp BSc (hons) OT
Clinical Director

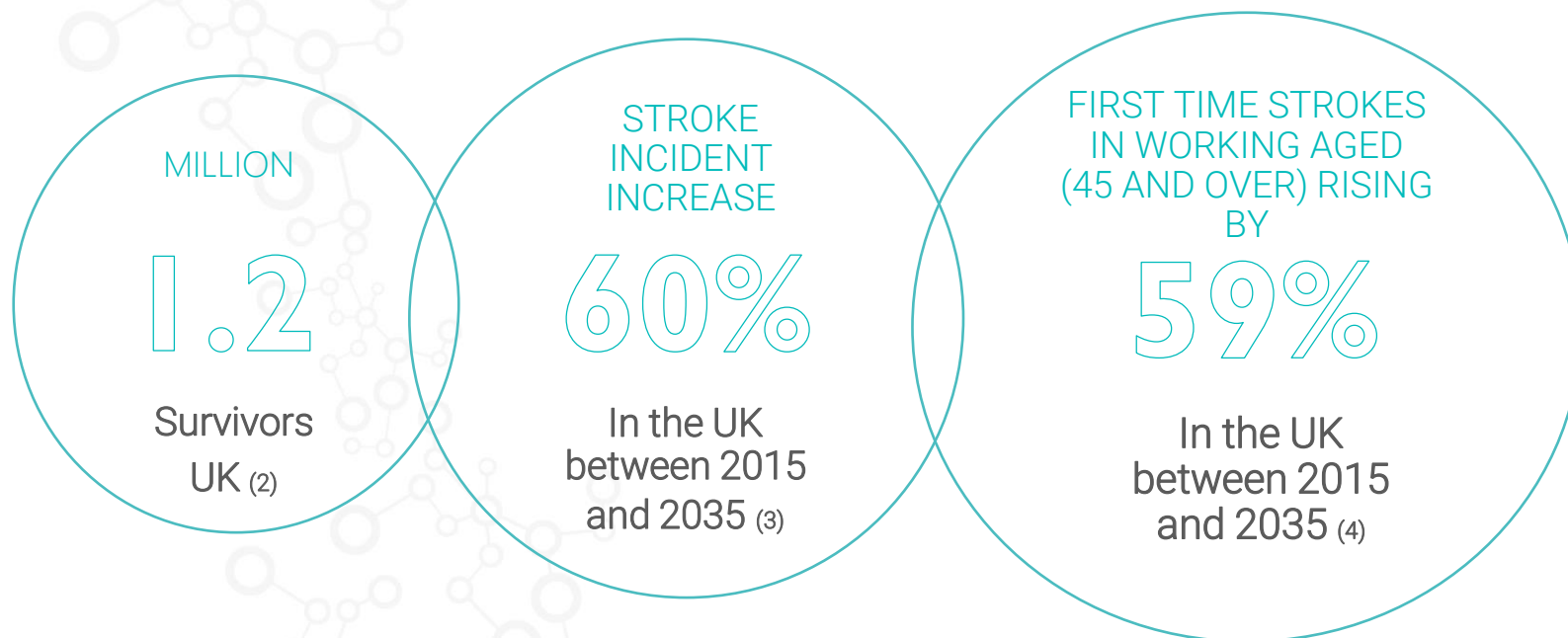
...realising potential, transforming lives

Agenda

- The facts about neurological conditions in a covid coated world.
- What are neurological conditions?
- A changed landscape, NHS demands and provision for neurological conditions.
- Real lives, real people – the personal impact within the context of work.
- Managing neurological cases – care pathways, duration and complexities
- Multi-faceted needs
- Case studies

The facts (pre-covid-19!) - Stroke

Almost half (45%) of stroke survivors feel abandoned after they leave hospital. (1) Those with mild/moderate needs are less likely to receive the rehabilitation they need.



Of the 150,000 people who suffer a stroke each year in the UK approximately a quarter are of working age. (5) The costs of stroke in the UK is expected to rise rapidly over the next two decades unless measures to prevent strokes and to reduce the disabling effects of strokes can be successfully developed and implemented. (6)

150,000 were waiting to be assessed by a specialist

66

...Over the past 18 months I have spent too many days in tears trying to get in touch with my MS consultant or someone from my MS team.

I have lost count of the number of calls and emails I have made. In the end I took myself off the treatment programme. I did not know what else to do and I still don't...

I get the pandemic caused unpredictable circumstances, but so does my MS.

We should never be put on pause when it comes to our health. Being left with absolutely no support, care or communication when I needed it most has left me with serious anxiety problems"

MS Sufferer

99

What are neurological conditions?

Social communication challenges

Physical communication needs

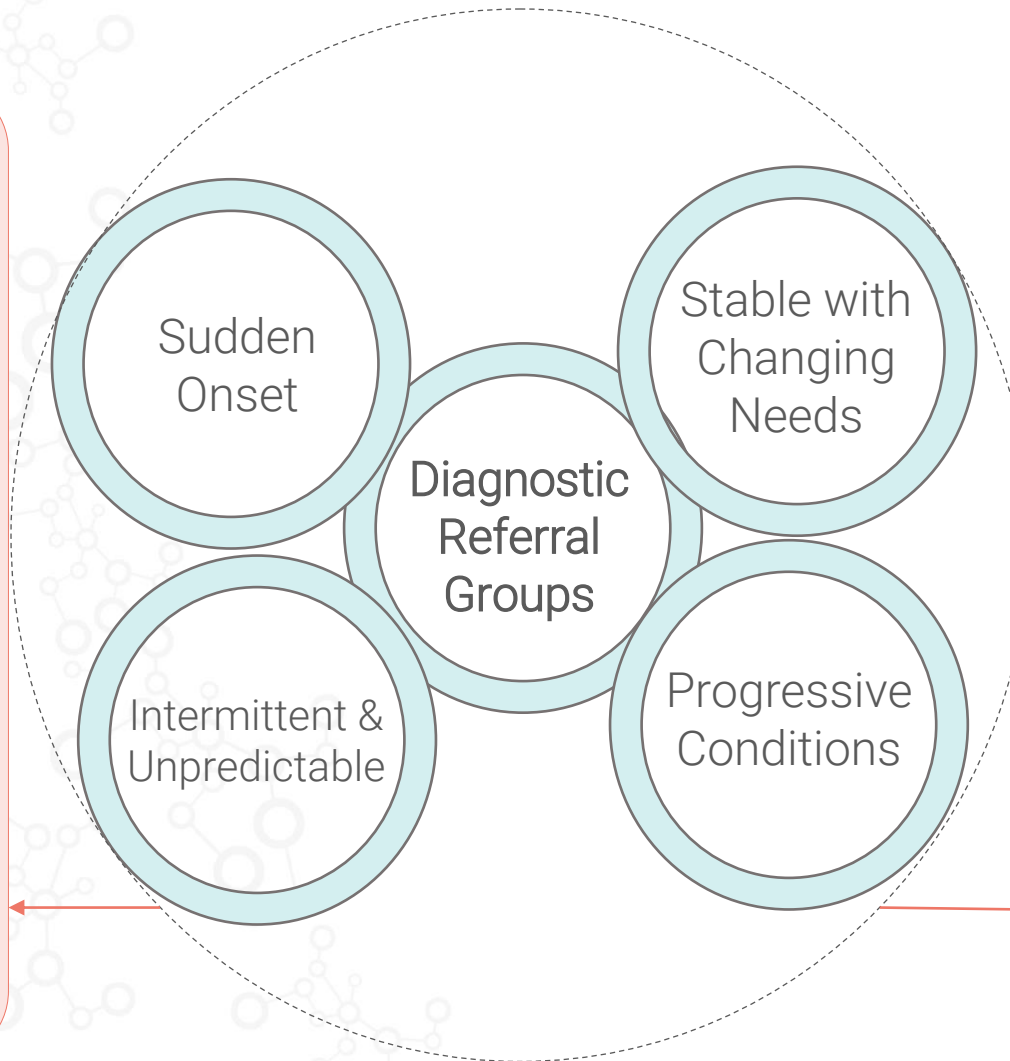
Behaviour, insight and awareness

Physical limitations & tone problems

Co-ordination difficulties

Altered physical sensation

Medically unexplained symptoms



Hidden disability

Memory

Attention

Fatigue & sleep disturbance

Visual perception & processing challenges

Auditory & vestibular functions

Executive skills

Sensory needs

Evidence – meeting the need? Current NHS service provision

Excessively long waiting lists for community neuro rehabilitation services.

Individuals with mild to moderate conditions are often not 'bad enough' for services, with the focus of care being on basic activities of daily living, return to work goals are not priority.

NICE and NHSE guidelines do not reflect the reality of service provision.

Mismatch and disjointed statutory services (social and community care).

Lack of GP awareness of invisible impairments.

Poor understanding from medical professionals of relevant services, roles of professionals and fragmented services.

The need – real lives, real people

74% felt they did not receive adequate treatment because a medical professional **did not believe the severity of their symptoms.**



35% have avoided seeking medical advice because they felt **embarrassed.**

News • UK News

Home Bargains reacts after claims staff 'mocked' disabled shopper

Dianna Slade claims she heard a male member of staff say 'It's a bit early to be drinking, isn't it?'

SHARE   

By Max Channon Network Content Editor, Adam Wareing & Tom Duffy & Alan Johnson
23.26, 29 SEP 2021 | UPDATED 09:36, 30 SEP 2021

NEWS

I kept my MS secret for years – those of us with unseen disabilities shouldn't have to hide them

By being honest I hope the public will understand more about long-term neurological disabilities like MS



By Benjamin Cohen

April 22, 2021 3:40 pm (Updated 4:56 pm)



92% of those living with a neurological disorder feel affected by stigma



Chronic Pain: 100% (80% very much)

Myalgic Encephalomyelitis: 99.6% (74% very much)

Migraine/headache: 96% (58% very much)

ADHD: 91% (49% very much)

Dystonia: 89% (31% very much)

Multiple Sclerosis: 87% (24% very much)

Epilepsy: 86% (27% very much)

Parkinson's Disease: 85% (34% very much)

Source: Statistics - European Federation of Neurological Associations 2020 – 1373 responses from 37 countries (29% from UK, 41% University Educated, 47% in domestic partnership, 40% felt uncomfortable disclosing their condition to a co-worker)

Source: UK press 2020

Our understanding of dyspraxia is still stuck in the dark ages

The lifelong neurological condition affects our co-ordination, as well as how we organise ourselves, how we structure our sentences, our time management and our speech patterns

The need – real lives, real people

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...while looking at my reflection in the mirror, I recognised the face as my own. But I did not feel at all like me.

I was looking at someone I had once been, but I felt that person was no longer around.

I knew that the old me had been intelligent, professionally successful and lived a good life.

All of that now appeared to be part of my past.

This is likely the most difficult perspective for anyone who has not personally experienced illness or injury to comprehend.

...I recognise that if someone such as myself, who has experienced it directly, can't describe it, it's likely impossible for anyone else to 'get it'.

99

45 year old Brain Injury Survivor

We all need to be heard and understood.

The environment – real lives, real people

Social Environmental Factors

Neurology Now: "The stigma of a neurologic disorder can be stressful"

March 9, 2017 By Parkinson's Community Help

Individual
in work

Physical Environmental Factors

Disabled woman wins Employment Tribunal claim over toilet issues

by REDMANS SOLICITORS on APRIL 16, 2014

The reality – real lives, real people

“

...coping with people's reaction to me has been hard....in general I think people don't cope with neuro conditions...I think they are afraid...

...a colleague at work said to me.... "Andrew I wish you would rock up or rock off" ...that was hard as he was basically telling me to f'off ...

...at the time I thought it was it me...my line manager did little to reassure me or help the situation...

...thinking about it now.... they were afraid and uncertain ...me being there repeats their anxieties and fears, they are worried that 'that person' will be unreliable and therefore they need to leave.

...thinking about that statement brings out a range of emotions in me, I feel maybe now I am strong enough to discuss their comments with that person again. I want to challenge those fears as I deserve to be there too....

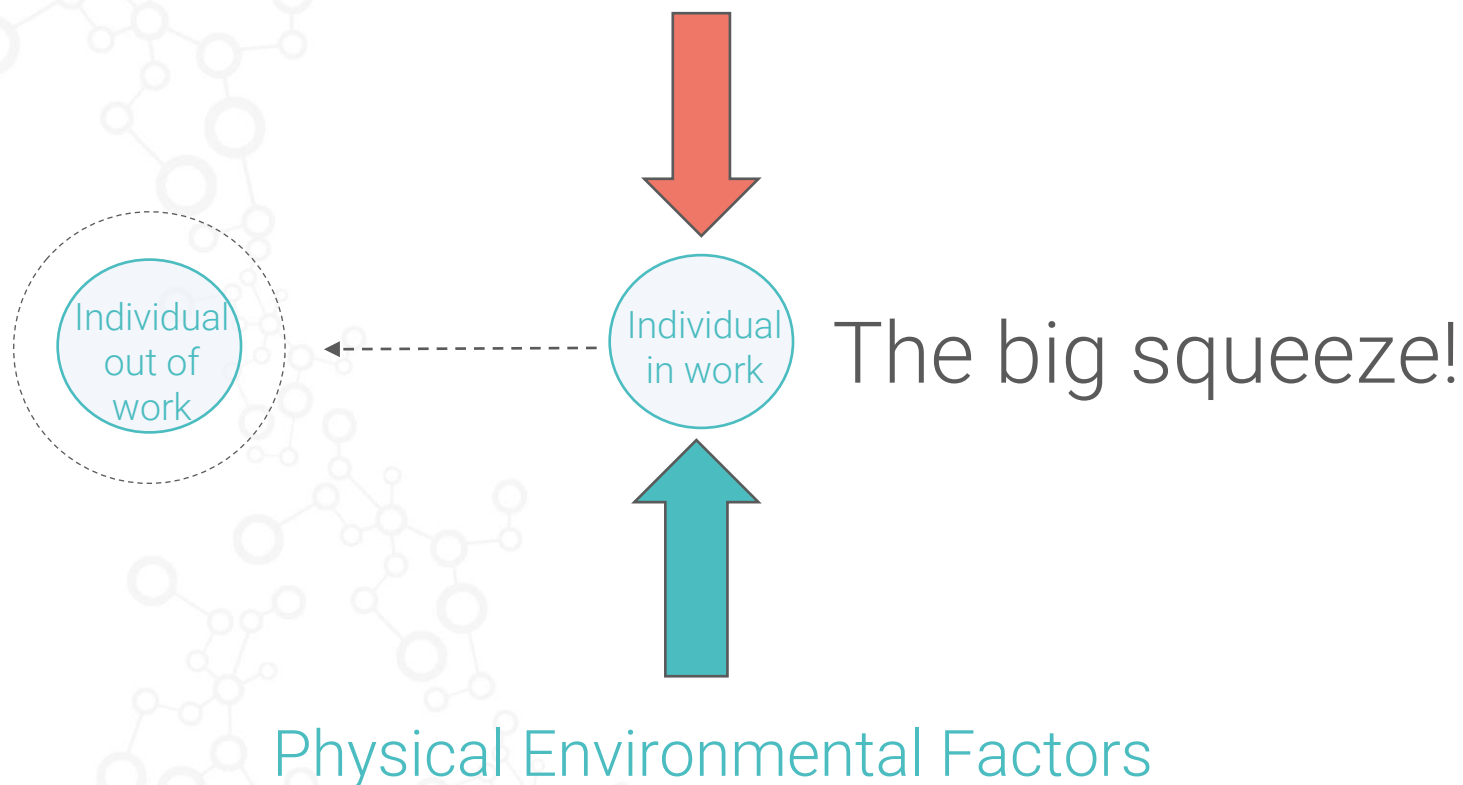
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52 year old Stroke Survivor
working 20 hours per week modified job role

We all need to be heard and understood in order to understand.

The everyday – real lives, real people

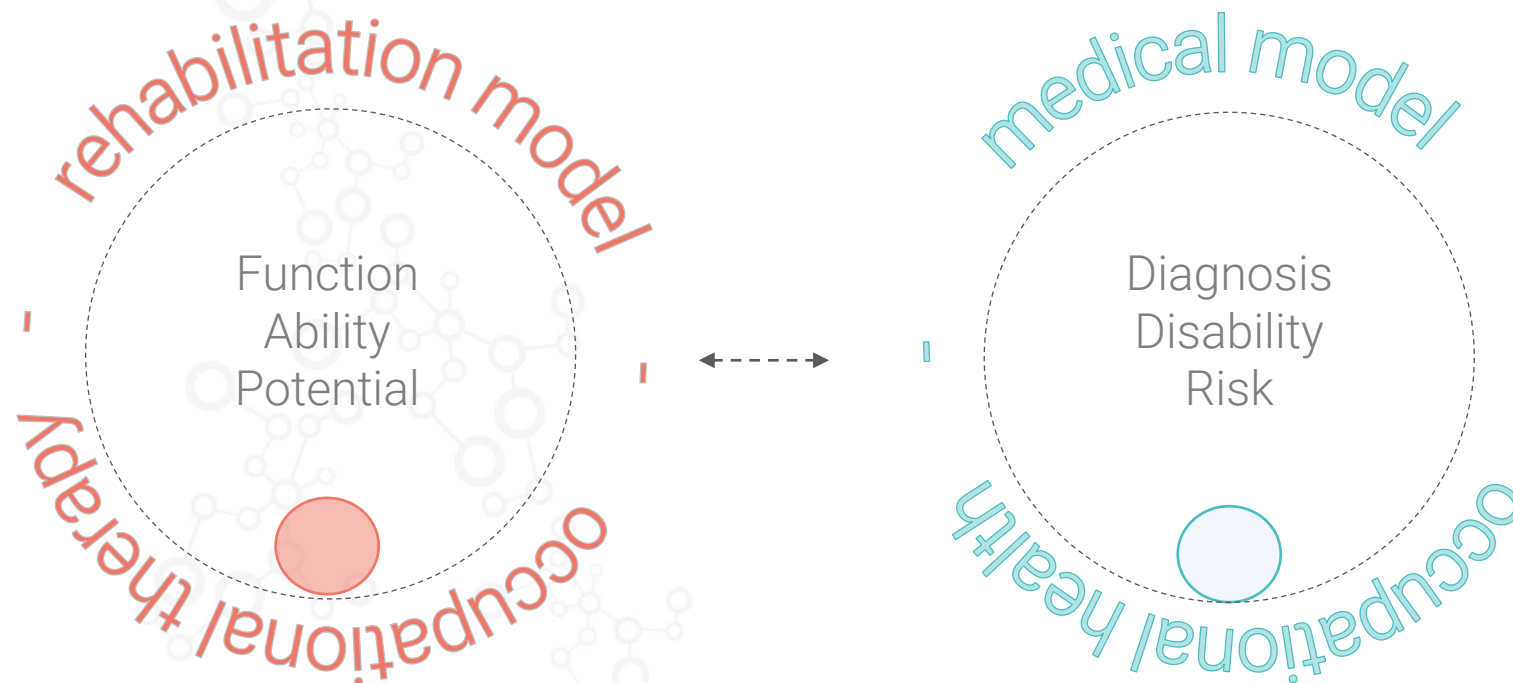
Social Environmental Factors



The workplace response – how occupational health & occupational therapy differ

“Occupational Therapists are the only healthcare profession in their undergraduate training to understand occupation (people’s everyday activities) from both physical, psychological and mental health perspectives. They assess function and rehabilitate.”

Royal College of Occupational Therapists ”



The workplace response – how occupational health & occupational therapy differ



* GP tweeting mid pandemic!

“

Occupational therapy has historically used work activities in rehabilitation. It is one of the few disciplines well placed to understand the relationships between the employee's medical condition, functional abilities, psychosocial status and work demands.

Stuckey et al 1997

”

The workplace response – real lives, real people

Sick role

Individual
in work

No apparent concern
from employer

Well intended concern from
employer

Appropriate concern from
employer?

Individual
out of work



'feeling ignored &
unsupported'



'feeling overwhelmed and
frustrated'

The need – real lives, real people

53 year old male.

Stroke resulting in left sided weakness affecting upper and lower limb.

Lack of function in left hand.

Requires orthotics to aid walking.

Speech impairment.

Fatigue

Andrew
Marr

*Presenter and
Journalist
Working for BBC*



“

....we are absolutely brilliant at saving people's lives from stroke but we are not good at saving people's quality of life after stroke.

I realised that if I was going to make any improvements I needed more therapy than the NHS system was going to provide...”

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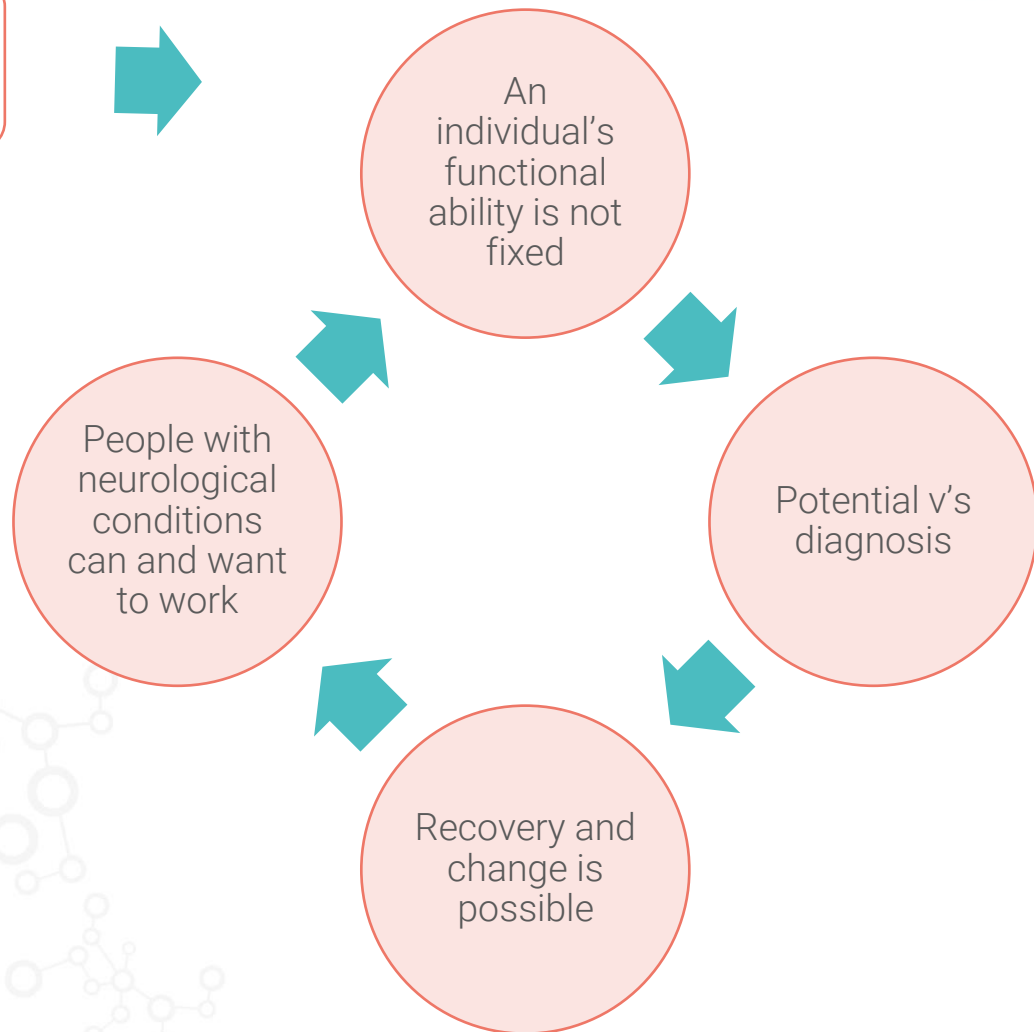
Specialist expertise promotes sustainable return to work & function.

The importance of adopting a truly person centred approach

An individual's functional ability is not solely related to their medical diagnosis.

Function incorporates:

Psychosocial status
Cognitive
Physical
Psychological
Sensory function
Role demands etc etc!



The importance of adopting a truly person-centred approach

Knowledge and understanding is critically important.

Stable foundations create the right environment for recovery.

Gain an understanding of an individual's personal perceptions of self, their abilities and motivations within the workplace and home.

Seek specialist assessments and therapeutic intervention that consider cognitive, physical & psychological function within the context of the diagnosis.

Supported individuals are more motivated to express their needs.

Show you have an awareness of the complex challenges facing an individual; reassuring them, their families and the workplace.

Acknowledge the complexity of the condition and the difficulties being faced.

Work in partnership. The values of compassion, empathy and respect are essential when involving individuals in their rehabilitation.

Personalisation increases engagement, improves outcomes; reduces duration and spend.

James

42yo Account Analyst
in full-time employment.

Employer referral.

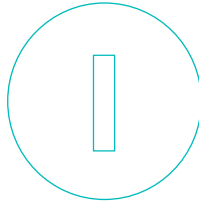
**Moderate needs – exclusive OT
intervention**

February 2015

Traumatic Brain Injury (TBI) and
minor knee injury whilst cycling
to work. No PI claim involved.

Cognitive limitations, poor
attention and memory, sensory
sensitivity, feelings of panic in
public.

Fit and well prior to the accident.
Active father with young family.



Work Aspects

Salary £38K+ per year.

Employee desire to return to role, had focus but lacked the ability to
influence situation alone.

Employer engaged and willing. HR/occupational health/line manager
lacked understanding of TBI's inc. impact and how to influence situation.
Employer lacked understanding of appropriate reasonable adjustments to
support employee back to work.

Both employee and employer were stuck with no options.



Intervention

June 2015

OT assessment: significant reduction in all daily activities, cognitive fatigue,
social withdrawal, knee pain, escalating anxiety.

No return-to-work plan, no intervention in place via the NHS. Financial
worries.

12 month intervention to address cognitive, physical, sensory and social
function issues.

Specialist return to work plan, starting with home-based work hardening
and phased return to work plan led by careful symptom monitoring.

Liaison and collaboration with the employer integral to intervention.



Outcome

Started phased return to work in September 2015, home based initially.

Intervention helped to overcome cognitive, physical and social issues
through a phased supervised / coaching approach delivered in
conjunction with specialist work focused neurorehabilitation.

Line and HR manager felt supported and confident when supporting
employee in the work-place.

*Phased return to work Aug/Sep-2015
Full time work May 2016*

Employee remains in full time employment to present day.

Krysalis – Case Study

“

...I am so grateful for her help, assistance and understanding in helping us find the light at the end of the tunnel leading and, other times, guiding us towards it...

I am convinced that without the intervention of an Occupational Therapist, I would not be where I am today.

James Brain Injury
Working full time

”

Krysalis – Neuro-Logical - Questions



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